

EXHIBIT K

Hearing Tr. Jan. 27, 2025, excerpts

Case No.: CGC-21-594102

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

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1 that has, you know, very high probative value to the case, which
2 my -- my basis and everything that I'm talking about. It's a 911
3 recording. And, we haven't been able to ascertain whether the
4 Defense was able to or was given access to that or not, and we
5 could be -- it can be requested by -- from the 911 services, or
6 the Court could, of course, accept my copy that I have.

7 THE COURT: Okay. Have you discussed this matter with
8 Ms. Navaratnasingham, is that how you pronounce it?

9 MS. NAVARATNASINGHAM: Yes, Your Honor. Thank you.

10 The plaintiff has stated in an email -- in emails that there
11 is a 911 recording. There was something produced to the
12 settlement conference officer. We're objecting to that. It's one
13 of the subjects of in motions in limine as we -- it lacks
14 foundation, and it wasn't produced during discovery.

15 MR. ROSARIO: We --

16 THE COURT: Yes, sir.

17 MR. ROSARIO: I provided the -- the numbers for -- the CAD
18 numbers to them during discovery in a document. I only discovered
19 the existence of the actual audio track when -- in December, and I
20 am actually in the process of applying for the -- the -- what do
21 you call it? There's a --

22 MR. SOBATI: ADA accommodation.

23 MR. ROSARIO: Yeah, the accommodation for people of -- it's a
24 2 -- was it 24D?

25 MR. SOBATI: MC 410? I'm sorry.

1 MS. NAVARATNASINGHAM: Yes. Thank you, Your Honor. We
2 oppose any request for continuance of this trial date. The case
3 has been pending for some time, discovery has been closed. Up
4 until about a few months ago, Mr. Rosario was represented by
5 counsel, the Dolan Law Firm, who no longer represents him.

6 We -- we oppose any continuance. The discovery has been
7 closed, expert disclosure has closed, expert discovery has closed,
8 and we're ready to proceed, Your Honor.

9 THE COURT: What about this matter of a 911 call?

10 MS. NAVARATNASINGHAM: Yeah, Your Honor. We addressed that
11 in one of our motions in limine. That was never produced in
12 discovery, this 911 call, that all of a sudden is turning up as of
13 December 18th, the date of our MSC, where he submits that to our
14 MSC officer. It lacks foundation. It's not authenticated. We
15 don't know where it came from, where he got it from. Discovery is
16 closed, and that evidence is inadmissible.

17 THE COURT: Well, what's the substance of the 911 call? Was
18 it someone who observed what happened?

19 MR. ROSARIO: Your Honor, it was the plaintiff -- the
20 defendant himself confessing to 911 that he struck me in the road,
21 in the crosswalk. It's in there. He said it clearly as day, and
22 it's in the record. As well as a passerby who saw the
23 hit-and-run. It's a very, very substantial record. And, it's
24 still available, because the city is currently still holding a
25 lien essentially because they called the 911 services to come and

1 assist me, and I have to pay for that. So, the city is still
2 holding that record, and they're just expecting that my prior
3 counsel had a copy of it. They sent it to me on digital format
4 over the internet, and they told me to get another copy.

5 Because I don't know how to navigate the Court system very
6 well after the brain damage, it's been very difficult, that I came
7 here to ask the Court to make sure that if you could place an
8 order to record -- to request that directly from the emergency
9 services. I can do it, but I think it would be much faster if the
10 Court made the order.

11 THE COURT: I don't think I have that authority.

12 MR. ROSARIO: I can do it again, but if we would agree that a
13 911 record is official because it is a public record that
14 submit -- it's damaging to the Defense, and that's why they want
15 to block it.

16 THE COURT: Have you heard the evidence?

17 MS. NAVARATNASINGHAM: No, Your Honor. No. So, the 911
18 called that he produced at the MSC to the MSC officer was a lady,
19 and it has no link whatsoever to this accident. There is no way
20 we can tell what that is related to.

21 If he says that he has a 911 call from the defendant, we have
22 never heard that.

23 MR. ROSARIO: That's absurdity. The defendant, they actually
24 provided me a piece of paper showing that the defendant himself --
25 claiming the defendant himself called 911. During the 911 call

1 We have two 911 records that the Defense has been trying to
2 suppress. And, I -- I can't -- I wouldn't be able to try the case
3 without the official 911 records from which the police report that
4 they're depending on was instigated. It doesn't provide
5 completeness, Your Honor.

6 THE COURT: Defense counsel?

7 MS. NAVARATNASINGHAM: Your Honor, the recordings, again,
8 completely lacks foundation; not authenticated. We have no idea
9 what they're -- Mr. Rosario is referring to. We have not heard
10 any recordings from our client.

11 This third-party witness that he says saw the accident, she
12 -- there is no identifying information on that whatsoever, and we
13 don't know where the recording came from. And, that's the subject
14 of our motion in limine. It's too late. We're on the first day
15 of trial here, and we're -- we oppose any continuance and would
16 like to proceed.

17 THE COURT: Okay. So, there's a couple of things going on
18 here. First of all, Mr. Rosario, the items that you seek to
19 retrieve are not available, apparently. Although you might have
20 submitted some kind of document which has been referred to as
21 computed aided dispatch, those are typically, from what I recall,
22 typed out shorthand of 911 calls; okay? So, that's one thing.

23 That would be in the course -- it would be a form of hearsay.
24 But, I would have to see the -- see whether or not that material
25 would be subject to a hearsay exception which would allow you to

1 the Code of Civil Procedure here.

2 Anything else?

3 MR. ROSARIO: That was number one, right?

4 THE COURT: Yes. The motion in limine number one will be
5 granted for failure to comply with the Code of Civil Procedure,
6 and I'll get the section here in a moment.

7 MR. ROSARIO: So, the -- I see. It's procedure. I guess at
8 this point, Your Honor, I'm going to have to ask for a
9 continuance, Your Honor, because in order for me to comply with
10 these type of rules to make sure that things are in line I'm going
11 to have to either, one, provide -- ask for a continuance to make
12 sure that the Defense gets those -- gets those proper --
13 properly -- as well as the discs and everything else. It's kind
14 of pushed me to that place.

15 THE COURT: Okay.

16 MR. ROSARIO: I need an emergency continuance to make sure
17 that I can provide that to the Defense. Of course, on the back
18 side, it also would give the Defense time to prepare things that
19 from their experts that they haven't provided to me.

20 THE COURT: Look, there is certain requirements under the
21 Code of Civil Procedure, specifically under Section 2024.010, and
22 what follows are cutoff dates, discovery cutoff dates, which is
23 specifically Section 2024.030, which is discovery cutoff for
24 expert witnesses. That has not been complied with. So, the Court
25 will grant the motion because of the failure to comply with the

1 witness, and they continued it for three months. I didn't ask for
2 anything because I made my best effort. I have worked day and
3 night to try to put this together, Your Honor, and I am asking for
4 a balance.

5 If they are granted a continuance to have one witness be able
6 to make -- be present, I am just asking for a continuance for the
7 discovery so I can make sure that the materials -- so I can have a
8 fair trial.

9 THE COURT: May I hear from defense counsel, please?

10 MS. NAVARATNASINGHAM: Your Honor, we object to any
11 continuance of the trial date. We're prepared to move forward.
12 We're on the first day of trial. And, I do believe the Court's
13 order previously stated there that was the last time that there
14 was going to be a trial continuance in this case.

15 THE COURT: That was Judge East?

16 MS. NAVARATNASINGHAM: Massullo. Judge Massullo.

17 MR. ROSARIO: There was a stipulation, actually, there was an
18 additional thing, unless there was something severe. Your Honor,
19 when finding new evidence is not severe, when getting an MRI that
20 says I have brain damage is not severe, when -- those things are
21 considered severe, Your Honor. This is going in the public
22 record. Obviously, people would -- anybody in the public would
23 agree that those are severe circumstances to allow for a
24 continuance. Absolutely.

25 THE COURT: Here is the concern I have here: First of all,